

~~SECRET~~
~~Education~~
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SETTLEMENT AGREEMENT, RELEASE AND WAIVER

This Settlement Agreement, Release and Waiver (hereinafter "Agreement") is entered into between ("Parent"), individually and on behalf of her son and ward, ("I" or "Student"), and the Brecksville-Broadview Heights School District Board of Education ("District" or "Board") (collectively, "Parties").

In consideration of and for the promises and mutual covenants set forth herein, the Parties agree as follows:

1. qualifies for special education and related services as a child with a disability pursuant to the Individuals with Disabilities Education Improvement Act ("IDEA") under the category of Autism. In order to avoid any potential disagreement over educational programming and/or placement for the 2022-2023 and 2023-2024 school years, and any potential expense, inconvenience or acrimony associated with a due process hearing that might result from said disagreement, the Parties determine it is in their mutual best interests to enter into this Agreement.

2. The parties agree as follows:

- a. Given Parent's intent to continue their unilateral parental placement of at Monarch Center for Autism ("Monarch") for the 2022-2023 and 2023-2024 school years, the District agrees to pay tuition, on behalf of Parent, to Monarch for the 2022-2023 school year, inclusive of the summer of 2023, and the 2023-2024 school year, inclusive of the summer of 2024. The District's total payment of tuition to Monarch for the 2022-2023 school year, inclusive of the summer of 2023 (i.e., the period of August 1, 2022, through July 31, 2023) shall not exceed ninety-two thousand, four hundred dollars and no cents (\$92,400.00) related to attendance at Monarch. For the 2022-2023 school year, the maximum District payment is based upon Monarch's regular school year tuition being \$92,400 and ESY services costing \$7,699.65. The District will pay a like amount (i.e., the standard or base tuition charged by Monarch for children placed at Monarch by their residential public school district for the regular 2023-2024 school year and the standard or base tuition charged by Monarch for the summer of 2024 ESY program that is equivalent to the ESY program that participated in during the summer of 2023) associated with Student's attendance at Monarch for the period of August 1, 2023, through the conclusion of the summer of 2024 ESY program (i.e., July 31, 2024).

Parent shall direct Monarch to provide the District Director of Pupil Services with copies of all invoices related to the tuition. The District's payments will be made on a monthly or quarterly basis as is standard for circumstances when public school districts contract with Monarch to provide educational services to a student. The District will make payment to Monarch within twenty (20) business days of the Director of Pupil Services receiving Monarch's invoices.

Parent agrees that Student will remain enrolled in the District during the pendency of this Agreement. Parent further agrees that for any school year in which Parent and/or Student accept the District making the payments set forth above, Parent and/or Student waive their right to apply for the Autism Scholarship Program or Jon Peterson Special Needs Scholarship. Parent further agrees that for any period of time covered by this Agreement in which she seeks contributions above and/or beyond that which is expressly set forth above, the District's payment obligations under this Agreement shall immediately terminate. Parent agrees to assume full responsibility for any remaining tuition and costs associated with education at Monarch during the 2022-2023 and 2023-2024 school years (inclusive of the summers of 2023 and 2024), including but not limited to transportation from Student's therapies and/or home-based services.

- b. The District agrees to transport Student to and from Monarch and his mother's home from August 1, 2022, through the conclusion of the summer of 2024 ESY program. If, however, Student urinates, defecates and/or vomits on the vehicle and the District's contracted transportation provider charges the District a surcharge to clean-up the bodily

fluids, Parent shall be responsible for paying the surcharge (i.e., \$15.00 per incident) upon receipt of proper invoicing as set forth below. The District will provide to Parent a copy of the incident reports generated as a result of any incident involving bodily fluids on the transportation vehicle. The District will submit a quarterly invoice (by November 15 (for August - October), February 15 (for November - January), May 15 (for February-April), and August 15 (for May- July)) to Parent that identifies the date of each incident and the total due, which shall be based upon the total number of incidents that occurred during the preceding three (3) months times \$15 per incident. Parent shall submit her full payment for the amount of the invoice by the end of the month in which they receive the invoice (i.e., November 30, February 29, May 31, and August 31). Parent agrees that she may not direct or control the District's choice of transportation provider as long as the District ensures that proper background checks as required by law are completed by said provider. If Parent requests to view a video of footage of any incidents involving bodily fluids that resulted in the imposition of a surcharge from the contracted transportation provider, and such video exists, the District will, within reason, assist Parent in her efforts to view the video, including providing any necessary releases to allow Parent to view the video based upon the District's contract with the contracted transportation provider. The Parties expressly agree that if the District is closed due to inclement weather, and/or the transportation provider determines the roads to be unsafe for travel due to inclement weather, the District will not be obligated to transport Student to or from Monarch if Monarch remains open. If Parent has a concern or issue related to transportation (e.g., Student is arriving at school late), Parent may notify the District Director of Pupil Services who will contact the transportation service provider and reasonably attempt to resolve / address the concern or issue.

- c. Parent agrees that the consideration under this agreement has been frontloaded by mutual agreement of the Parties and that Student shall not receive any services or funding from the District from the conclusion of summer 2024 through September 18, 2024, at which time Student turns twenty-two years of age.
- d. Parent affirms that she selected Monarch and all other non-District providers, attendance at Monarch is pursuant to a unilateral parental placement, and Monarch and all other non-District providers were not determined by IEP team to be his least restrictive environment ("LRE"). As such, Parent agrees that the District shall not be responsible for the efficacy of the educational program provided to , through and at Monarch and all other non-District providers, and that she shall have no right to seek compensatory education or other relief from the District as a result of any real or perceived failures by Monarch and all other non-District providers. See Paragraph 3 (Student may return to school in the District any time and forego future payments otherwise authorized by this Agreement).
- e. The District's obligation to pay to Monarch the amounts identified in Paragraph 2.a. is contingent upon Parent complying with her responsibilities under this Agreement and shall automatically terminate if is no longer enrolled in or attending Monarch, or if Student's mother/guardian no longer resides in the District. Such termination shall have no effect upon the District's obligation to provide the payments in Paragraph 2.a. for educational services provided to by Monarch prior to the date he is no longer enrolled in or no longer attending Monarch, or Student's mother no longer resides in the District. If stops attending Monarch for any reason during the 2022-2023 or 2023-2024 school years, inclusive of the summers of 2023 and 2024, and Student's mother continues to reside in the District, Parent must notify the District immediately in writing and the District will offer to implement the 10/11/2019 IEP until such time as a new IEP can be developed. The new IEP shall be developed within ten (10) school days of Daniel returning to school in the District. Parent must notify the District within five (5) business days of Student's mother/guardian moving out of the District (i.e., ceasing to be a resident of the District).
- f. Parent waives her right to challenge the appropriateness of any IEP developed during the effective period of this Agreement. The Parties mutually agree to not abide by Paragraph 2(f) of the Settlement Agreement Release and Waiver executed by the Parties

on September 15, 2020 regarding the Student's re-evaluation. Parent further agree to waive the Student's re-evaluation during the effective period of this Agreement.

- g. Parent agree to provide the District with any ISPs/IEPs developed by Monarch for the 2022-2023 and 2023-2024 school years. Parent further agree to provide the District, within five (5) business days of the date issued, Monarch's progress reports. Parent further give consent to the District and its employees to obtain any records regarding education at Monarch (including but not limited to all programming data, daily, weekly, bi-weekly logs or progress reports/notes, assessments, consultants' reports, and evaluations). Parent shall provide to Monarch releases of information allowing the District to receive such education records from Monarch for the period _____ attends Monarch pursuant to the terms of this Agreement. If the District requires assistance from Parent to obtain educational information/records about _____ from Monarch, the District shall advise Parent of this need and provide Parent with specific guidance as to the nature of the assistance needed. Parent authorize the District to participate - either in person or telephonically / virtually - in all service planning meetings and/or program review meetings that Monarch conducts concerning _____ (e.g., quarterly staffing meetings at Monarch, and IEP/ISP team meetings and progress meetings at Monarch). Parent will request that Monarch provide an invitation to the District Director of Pupil Services, through e-mail, of such meetings for _____ when such invitation or notice is provided to Parent. If Monarch refuses to provide such notification, Parent will notify the District, in advance, of such meetings (i.e., Parent will notify the District Director of Pupil Services, via telephone or e-mail, at least seven (7) calendar days in advance of any meetings that occur at Monarch relating to _____; if Monarch provides Parent with fewer than seven (7) calendar days advanced notice of a meeting, Parent will provide notice to the District Director of Pupil Services within a reasonable period after their receipt of the notice from Monarch). If personnel from the District plan to attend or participate telephonically / virtually in a meeting, the District will notify Parent and Monarch in advance of the meeting.
 - h. Parent understands and agrees that _____'s placement at Monarch is unilateral on her part and is not deemed "initial stay-put," or _____'s "stay-put" or "initial/pendency placement," and further agrees that _____; stay put placement is within the District.
 - i. Parent agrees to assume full responsibility for federal, state, and local taxes and other payments, if any, owed on the amounts paid by the District, on behalf of Parent, to Monarch pursuant to this Agreement. While the District will report to the Internal Revenue Service ("IRS") the amounts paid to Monarch pursuant to this Agreement by issuing a Form 1099-MISC to Monarch, the District will not issue to Parent a Form 1099-MISC, and no withholdings will be made from the amounts paid by the District to Monarch pursuant Paragraph 2.a. If it is later determined by the IRS or another governmental authority that the District should have withheld taxes from the amounts paid by it to Monarch pursuant to this Agreement, Parent agrees to indemnify and hold the District harmless for the amount of such taxes, and to reimburse the District for any penalties and/or interest assessed against the District as a result of it failing to withhold the taxes on said payments.
3. The Parties agree that for any school year or time-period referenced in this Agreement, Parent and/or Student have the right to decline the settlement terms and amounts specified in Paragraph 2.a., and to seek to have Student educated in the District and to be served under the IDEA. If Parent and/or Student accept payment for any year or time-period referenced in Paragraph 2.a., claims for that specific year and/or time-period, including any right to access a FAPE from the

District are waived for the period of the year covered by the payments in accordance with the terms of the Agreement.

4. This Agreement is not precedent setting. The Parties expressly agree that this Agreement shall have no bearing on [redacted]'s current and future educational programming and educational placement, except as expressly stated herein. As such, Parent agrees that she is prohibited from introducing this Agreement or the payments made by the District in accordance with this Agreement in any future due process proceeding for the purpose of establishing Daniel's need for placement outside of the District.
5. If [redacted] and/or his legal guardian or representative(s), as designated by a Court or Parent, ever initiate any legal proceedings seeking to invalidate or set aside all or any portion(s) of this Agreement, other than an action for breach of this Agreement, Parent shall hold the District harmless and indemnify the District for any liability, judgment, legal fees, or other costs and expenses arising from such legal proceedings. To the extent permitted by law, any challenge to this Agreement must be brought in Federal District Court.
6. Parent expressly acknowledges that this Agreement is effective through the 2023-2024 school year, inclusive of the summer of 2024, and that circumstances may change. Parent further acknowledges and agrees that she assumes the risk of any and all changes in circumstance and that this Agreement shall not be invalidated by any such change.
7. The payments identified in Paragraph 2.a. shall be made in a timely manner in accordance with the terms of that Paragraph. Parent specifically waives any right to interest or late fees on the amount of settlement for any delay in payment from the date of settlement until the date payment is due in accordance with the terms of this Agreement, and specifically releases and discharges the District and Walter Haverfield LLP, including all of their predecessors, successors, assigns, officers, employees and agents, and each of them, in both their individual and official capacities, from any claim or demand for interest on the settlement amount to which the Parent may or may not otherwise be entitled in accordance with *Hartmann v. Duffey*, 95 Ohio St.3d 456 (2002).
8. In consideration of the promises and commitments of the Board, as set forth in this Agreement, Parent, on her own behalf and on behalf of [redacted], agrees that all of the issues that could have been raised in an impartial due process hearing pursuant to the IDEA are resolved by this Agreement. Parent, on her own behalf and on behalf of [redacted], forever releases and discharges the Board, including individual Board members, employees, and agents in their official capacities, (collectively referred to as "The Board and its Agents"), from any and all claims, demands, actions, causes of actions or suits at law or in equity of whatsoever kind and nature (including administrative complaints with the Ohio Department of Education and the United States Department of Education Office for Civil Rights, including claims of discrimination or retaliation pursuant to Section 504), which Parent and/or [redacted] may have had, now have, or may now or hereafter assert against the Board and its Agents for the entire period prior to and up to the date of this Agreement, with respect to [redacted] and his education in and through the District (i.e., the District's provision of a free appropriate public education to [redacted]) and their participation in [redacted] educational programming. This comprehensive waiver of claims includes, but is not limited to, claims for education, special education, related services, transportation, tuition, room and board, reimbursement, compensatory education, damages (including related to claims of discrimination and/or retaliation), therapy, breach of contract, independent evaluations, and attorneys' fees. This release of claims shall run through the end of the 2023-2024 school year, inclusive of the summer of 2024. If [redacted] returns to the District prior to the conclusion of the summer of 2024 ESY program, this Agreement will run through the date he returns to school in the District. This discharge of any liability includes, but is not limited to, a release of all claims arising under Section 1983 of the Civil Rights Act (42 U.S.C. § 1983), 20 U.S.C. §§ 1400 et seq. (i.e., the Individuals with Disabilities Education Improvement Act), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), the Americans with Disabilities Act (42 U.S.C. § 12101), Ohio Revised Code Chapter 3323, other civil rights laws, regulations that implement the above-referenced statutes, and the U.S. Constitution and Ohio Constitution. Notwithstanding the preceding, Parent retains all her rights under applicable laws and regulations to enforce this Agreement.

9. Parent (individually and on behalf of _____) agrees to keep the existence of this Agreement and the terms and content of this Agreement confidential and will not release or discuss it, in writing or orally, with third parties. Specifically, she agrees not to share this Agreement or the terms of this Agreement with anyone other than the following: (a) Monarch personnel necessary to facilitate implementation of this Agreement; (b) Parent's attorneys, accountants, financial advisors, and tax advisors; and (c) courts, impartial hearing officers, and mediators as necessary. Parent shall direct the individuals and organizations referenced in (a) and (b) to keep this document and its terms confidential, and that this document constitutes a student education record that is protected under FERPA and Ohio Revised Code Section 3319.321. If asked about her dispute with the Brecksville-Broadview Heights City School District, Parent shall respond only that it has been satisfactorily resolved. If it is determined by a court of competent jurisdiction that Parent violated this Paragraph, the court will have authority to award appropriate relief, which may include terminating the District's financial obligations under this Agreement and/or ordering Parent to refund all monies paid pursuant to this Agreement.
10. Parent expressly waives her right to initiate a complaint with the Ohio Department of Education ("ODE") relating to any aspect of _____ education arising on or before the date this Agreement is executed. Parent further agrees that ODE does not have jurisdiction to investigate or rule upon any complaints brought by Parent relating to any aspects of Student's education arising on or before the date this Agreement is executed. Additionally, Parent waives her right to file a complaint with the U.S. Department of Education's Office for Civil Rights ("OCR") concerning any aspect of Student's education arising on or before the date this Agreement is executed (including claims of discrimination or retaliation pursuant to Section 504). Parent confirms that any issue/claim that could have been brought before ODE or OCR has been resolved.
11. The District and Parent agree that the provisions of this Agreement can only be modified through mutual agreement as evidenced by a document signed by both parties that serves as a supplement to this Agreement.
12. The Parties acknowledge that they have read this Settlement Agreement, Release and Waiver, and fully understand its provisions. The Parties further acknowledge that they have had an opportunity to consult with legal counsel of their choosing to consider its terms before signing the Agreement. The Parties further declare and acknowledge that no promises or agreements not hereby expressed have been made to them and that this Settlement Agreement, Release and Waiver contains the entire agreement between the Parties. The Parties affirm they are signing this Agreement of their own free and voluntary will.
13. This Agreement does not represent or constitute, nor shall it be construed as, an admission of liability or wrongdoing by the Board, its agents, employees or successors, with respect to any claims Parent could have raised with respect to _____ entitlement to a free appropriate public education. The District is not admitting any IEPs or placements that it previously offered were inappropriate; Parent do not admit that the same were appropriate. The Board expressly denies that it has done anything wrong or unlawful.
14. This Agreement is comprehensive with respect to the sums to be paid to and/or for the benefit of Parent, and Parent agrees that neither they nor their attorney(s) shall make an application to a court for, or in any other manner seek, fees and/or costs in connection with development and/or review of this Agreement. Except as provided in this Agreement, the Parties shall bear their own costs in connection with this matter.
15. This Agreement is subject to approval by the Board of Education, which will consider this matter no later than _____, 2022.

Date: _____

(On behalf of herself and _____)

Date: _____

Joelle Magyar
Superintendent
(On behalf of the Brecksville-Broadview Heights
City School District Board of Education)

Date: _____

Cynthia Tomassetti
Director of Pupil Services
(On behalf of the Brecksville-Broadview Heights
City School District Board of Education)

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